



POLICE DEPARTMENT

March 4, 2020

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In the Matter of the Charges and Specifications :

- against - :

Lieutenant Lamont Gibson :

Tax Registry No. 944594 :

Police Service Area 6 :

Police Officer Nicholas Rios :

Tax Registry No. 955377 :

Police Service Area 7 :

Case No.

2018-19331

Case No.

2018-19335
-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

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Civilian Complaint Review Board
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New York, NY 10007

For Respondent Gibson:

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To:
HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

DISCIPLINARY CASE NO. 2018-19331

1. Sergeant Lamont Gibson, on or about August 11, 2017, at approximately 2130 hours, while assigned to PSA 7 and on duty, in the vicinity of [REDACTED], Bronx County, abused his authority as a member of the New York City Police Department, in that he stopped Person A without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16

INVESTIGATIVE ENCOUNTERS

2. Sergeant Lamont Gibson, on or about August 11, 2017, at approximately 2130 hours, while assigned to PSA 7 and on duty, in the vicinity of [REDACTED], Bronx County, abused his authority as a member of the New York City Police Department, in that he stopped Person B without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16

INVESTIGATIVE ENCOUNTERS

3. Sergeant Lamont Gibson, on or about August 11, 2017, at approximately 2130 hours, while assigned to PSA 7 and on duty, in the vicinity of [REDACTED], Bronx County, abused his authority as a member of the New York City Police Department, in that he searched Person A's backpack without sufficient legal authority.

P.G. 212-11, Page 5, Paragraph 23

INVESTIGATIVE ENCOUNTERS

DISCIPLINARY CASE NO. 2018-19335

1. Police Officer Nicholas Rios, on or about August 11, 2017, at approximately 2130 hours, while assigned to PSA 7 and on duty, in the vicinity of East [REDACTED], Bronx County, wrongfully used force, in that he used physical force against Person A by slamming his body to the ground without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Police Officer Nicholas Rios, on or about August 11, 2017, at approximately 2130 hours, while assigned to PSA 7 and on duty, in the vicinity of [REDACTED], Bronx County, wrongfully used force, in that he used physical force against Person A by stomping on his chest and back without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on January 16 and 23, 2020. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The Civilian Complaint Review Board called Person A, Person B and Person C as witnesses. Each Respondent testified on his own behalf. A stenographic transcript of

the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find both Respondents guilty, and recommend that they each forfeit ten (10) vacation days.

ANALYSIS

At approximately 2130 hours on August 11, 2017, 16-year old Person A ("Person A") was walking with his brother, 13-year old Person B ("Person B"), in the vicinity of [REDACTED] in the Bronx. At the request of their mother, the brothers had just retrieved a package of diapers from their home, and were bringing it back to their mother who was at their aunt's house. The diapers were being carried by Person A inside a small, pink book bag with an exterior design from the movie "Frozen." Person A also had some food he had purchased inside the bag, which was zipped shut.

As they were walking, an unmarked police car pulled alongside the two teenagers. Officers exited the vehicle and approached the brothers, who ran away. They were separately caught by officers a short distance away. It is alleged that Respondent Gibson wrongfully stopped Person A and Person B, and that he searched Person A's book bag without sufficient legal authority. It also is alleged that Respondent Rios used excessive force against Person A by slamming him to the ground and stomping on his chest and back.

Person A, who is now 19, testified that as they were walking, he and his brother were joking with each other. There was nothing in Person A's hands, which were mostly in his pockets. After saying something funny, Person A patted Person B on the chest; Person A also received two "high-fives" from Person B, before Person A placed his hands back into his pockets. A black car with tinted windows pulled up about 10-15 feet away, two men emerged, then two more exited as well and walked toward Person B without saying anything. The men were wearing

casual clothes and Person A did not see any badges, so he told his brother, who was a few feet behind him, to run out of concern for their safety. The two brothers ran toward their aunt's house, with Person A about 10-15 feet ahead of Person B. Person A glanced back and saw Person B

getting up off the ground, though he did not know how Person B had gone to the ground in the first

place. Person A continued running until another vehicle cut him off at an intersection. (Tr. 26-34, 52-56, 79-82)

From behind, someone¹ grabbed Person A by the waist, lifted him up, and slammed him to the ground. Person A testified that for the first time, the individual identified himself as a police officer and Person A was handcuffed. The officer who had thrown him to the ground placed his knee on Person A's back, then stomped him on his back with his foot several times. Person A who was about 5'6" and weighed approximately "120-something" pounds at the time, was turned onto his back, and the officer kicked him in his chest. Person A was asked for and provided his name, date of birth and where he was going, and told the officer what was in the bag. The officer lifted Person A off the ground, and Person A saw that there were other officers present. They searched inside the bag, and confirmed what Person A had told them. Person A noticed his brother, in handcuffs, being walked toward them by different officers. They were soon uncuffed, the sergeant on the scene joked that they had given the officers a good run, and the brothers were free to continue on to their aunt's home. (Tr. 35-43, 48-50, 69-74, 84-87)

Person A informed his mother what had occurred, and she brought them to the police station to make a report. At the precinct, the officers took photographs of Person A (CCRB Ex.

¹ Person A described the officer who slammed him to the ground as short, with dark blond hair. That description does not match Respondent Rios, and Person A did not make an in-court identification of Respondent Rios. Nevertheless, it is undisputed that Respondent Rios is the officer who first engaged Person A at the time Person A was detained. Person A did make an in-court identification of Respondent Gibson as the sergeant who was on the scene. (Tr. 66-67, 99)

1). Among the eight photographs, one shows dirt marks on the back of Person A's white t-shirt, which Person A explained included shoeprints from the officer stomping on him (CCRB Ex. 1A). The next morning, Person A woke up with pain in his back and chest, and was taken to [REDACTED] Hospital, where he was given ibuprofen for his pain; the medical records, which were admitted into evidence as CCRB Ex. 2, indicate a diagnosis of "acute pain due to trauma," though there was "no evidence of fracture or dislocation." The family reported the incident to the CCRB, and initiated a lawsuit against the NYPD soon after. (Tr. 44-47, 74-75, 88-89, 98-102)

Person B, who is now 15, testified that he and his brother were joking around and laughing as they walked, and that they briefly clasped hands when Person A made a joke. When the black car pulled up, Person A stated that he was afraid they were about to be "jumped," and a stranger across the street told them, "run, little kids, run." They started to run, and a man with a Giants shirt emerged from the car and "bum-rushed" Person B, causing Person B to hit his ribcage against the car. The man did not say anything, and did not have a badge displayed. Person B resumed running, but a tall man tripped him. Person B got up and continued to run, until the man with the Giants shirt, whom he later learned to be a police officer, took him to the ground and handcuffed him. (Tr. 116-17, 119-25, 143, 146-47)

Person B claimed that he was able to see his brother brought to the ground about a block and a half ahead. The officer with the Giants shirt then put his knee and foot into Person A's chest and his knee into his back. Person A was walked over to Person B, and the brothers responded to questions as to who they were and what was inside the bag. The officers explained that they had stopped the brothers because there were kids in the area selling "weed." After checking inside the bag, the officers uncuffed them and let them go. Person B did not get a good look at the faces of

the officers, and was unable to make an in-court identification of either Respondent. (Tr. 125-33, 138, 148-50, 153)

Person C, the mother of [REDACTED] and Person B, testified that before she sent her sons to retrieve the diapers, Person A was wearing a clean shirt. When they returned, Person A's shirt was dirty, with what appeared to be a shoeprint on the back. Person C brought her sons, who were shaken and scared, to the police station to report the incident. At the precinct, Respondent Gibson, who was polite and respectful, approached Person C and apologized for what had occurred. (Tr. 157, 160-61, 166)

Respondent Gibson testified that he was the anti-crime supervisor on the night of the incident. The team was patrolling an area where there had been frequent drug transactions and youth gang violence, including a homicide two days prior. At about 2100 hours, he was inside an unmarked car with Officers Pena and DeThomas² driving southbound on [REDACTED] when he observed two young men, later learned to be Person A and Person B, walking northbound. The young men grasped each other's hands, then placed their hands back into their own pockets, in a way that suggested to Respondent Gibson that they were engaged in a drug transaction. Respondent Gibson conceded that he did not see any objects or money in either of their hands, and did not witness anything being exchanged. He also observed that one of the young men, Person A, had a small, colorful backpack with what appeared to be "a heavy, droopy object" weighing down the middle of the bag. Respondent Gibson suspected that the object might be a firearm, though he acknowledged that he could not actually see what was inside the bag, could

² Respondent Gibson described Officer DeThomas as a male white, about 5'6" or 5'7", with dark blond hair, a description similar to the one used by Person A in connection with the officer who slammed him to the ground and stomped on him. (Tr. 241, 247)

not assess the weight of the object, and did not see either of the young men reach inside the bag or fiddle with it. (Tr. 197-202, 216-21, 224)

Based on these observations, Respondent Gibson had his operator stop their vehicle, and he emerged from the car, in plain clothes but with his shield around his neck. Respondent Gibson testified that he identified himself as "Police," and the two young men ran away. Respondent Gibson and Officer DeThomas pursued them on foot, and when the slower of the two, Person B, tripped and fell to the ground, Officer DeThomas picked him up and placed him in handcuffs. Meanwhile, Respondent Rios and Officer Baez, who were in another vehicle, pursued Person A and apprehended him about a block-and-a-half away less than a minute later; Respondent Gibson could not see the details of that apprehension, and did not see anyone stomp on Person A. (Tr. 203-05, 222-26)

Respondent Gibson testified that less than a minute after stopping Person B, he and Officer DeThomas walked Person B over to where Person A was being detained by Respondent Rios. Respondent Gibson asked Person A what was in the backpack, and the young man answered that the bag contained diapers and baby formula. Respondent Gibson acknowledged that when he felt the outside of the bag, it did not feel like there was a firearm inside. Nevertheless, Respondent Gibson opened the bag and checked inside, and confirmed that the contents were exactly what Person A had said. He zipped up the bag and returned it to Person A. Person A and Person B provided their identification information to Respondent Gibson, and they were each released. He asked if they needed medical attention since Person A was breathing heavily, but they both declined; Respondent Gibson did not notice any visible injuries on either of them. Later at the precinct, Respondent Gibson saw the mother of the two young men, explained to her what had transpired, and apologized to her; according to Respondent Gibson, Person C seemed to be satisfied with his explanation. (Tr. 205-09, 228-31, 248)

At some point in time, Respondent Gibson interviewed Respondent Rios regarding how Person A was taken to the ground, and a TRI Worksheet was prepared (CCRB Ex. 4). That report, which was signed by Respondent Gibson, indicates that Respondent Rios used a "Forcible Take Down" of Person A. (Tr. 231-34, 243-45)

Respondent Rios testified that he was in an unmarked car with Officer Baez when he observed Respondent Gibson and Officer DeThomas emerge from the other police vehicle. Two individuals walking on the sidewalk, Person A and Person B, began running in the direction of Respondent Rios' car. Respondent Rios, who did not know the basis for the stop, exited with his shield around his neck and yelled "police -- don't move" multiple times, but Person A and Person B continued to run. Officer Baez made a U-turn, activated his lights and sirens, and pursued Person A in the vehicle, while Respondent Rios chased Person A on foot. Officer Baez was able to cut-off Person A, which caused him to stop short, lose his footing, and fall to the ground. At that moment, Respondent Rios tried to grab Person A, and briefly lost his balance as well. Respondent Rios then stood over Person A, who was lying on his stomach. Person A was handcuffed and lifted off the ground. (Tr. 256-62, 271-75)

Respondent Rios claimed that he saw what appeared to be a cylinder-shaped object inside Person A's book bag; he felt the bag from the outside, but could not recall whether the object felt soft or hard. The other officers, including Respondent Gibson, were there within seconds, and they took charge of the matter since they had initiated the stop. Respondent Rios insisted that he did not punch or strike Person A in order to gain control, did not stomp on him, and did not place his knee into Person A's back. Respondent Rios also testified that he could not recall Person A pushing, shoving, or resisting in any way. However, the TRI Worksheet (CCRB Ex. 4) has a box checked off indicating that Person A was "Pushing/Shoving" the officer. (Tr. 264-69, 279-81)

The charges against each Respondent will be considered separately.

Respondent Gibson

Specifications 1 and 2 charge Respondent Gibson with stopping Person A and Person B without sufficient legal authority. Section 212-11 (16) of the Patrol Guide states, "Upon reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor, stop and detain the person for the purpose of conducting a criminal investigation." Here, it is undisputed that Respondent Gibson initiated the stops of Person A and Person B when he exited his police car, approached the two complainants, and called out "Police," which led directly to their pursuit and detention by members of his team. At issue is whether Respondent Gibson had a reasonable suspicion to do so. I find that he did not.

According to Respondent Gibson, he observed Person A and Person B clasp hands and then place their hands in their pockets in a way that suggested to him that they were engaged in a drug transaction. The incident occurred in a high crime area. Respondent Gibson also noted that he suspected there might be a firearm inside Person A's book bag, based on the appearance of a heavy, droopy object in the center of the bag.

On the one hand, Respondent Gibson came across as professional and credible as a witness as he explained why he initiated the stops. Indeed, the two complainants confirmed that they did briefly clasp hands, though they explained it was part of their joking around with each other. Even so, Respondent Gibson's observations did not provide reasonable suspicion that a crime was being committed. Respondent Gibson candidly acknowledged that he did not see any objects or money pass between Person A and Person B, and neither teenager had anything in his hands. Taken as a whole, these observations did not constitute sufficient indicia that an illicit drug transaction had occurred. Similarly, Respondent Gibson's observations as to the backpack did not provide reasonable suspicion that there was a firearm inside. The officers had not received a report of a firearm. Respondent Gibson did not observe what was inside the bag, and

his general description of a heavy, drooping object was insufficient to constitute reasonable suspicion that Person A was in possession of a gun.

Even factoring in that the stop occurred in a high crime area, and that the complainants chose to run, Respondent Gibson still did not articulate a reasonable suspicion to justify the stops of Person A and Person B. Accordingly, I find Respondent Gibson guilty of Specifications 1 and 2.

Specification 3 charges Respondent Gibson with searching Person A's backpack without sufficient legal authority. Section 212-11 (23) of the Patrol Guide states, "An officer may not frisk a person's bag or other item of personal property unless the officer has reasonable suspicion that the person is armed and dangerous and that the bag...could contain a weapon and is within the person's reach." The section also states that if the bag is soft, the officer should run his hands down the outside of the bag, and "open it only if he feels the contours of what he believes is a weapon." Again, it is undisputed that Respondent Gibson did search the bag after Person A was detained. At issue is whether he had reasonable suspicion to do so. I find that he did not.

Respondent Gibson explained that he saw a heavy, droopy object inside the bag, which suggested to him that there might be a firearm inside the backpack. However, as discussed above, the officers were not responding to a report of a firearm. Respondent Gibson could not specifically see what was inside the bag, and never observed an object that he could reasonably have concluded was a weapon. He did not observe either complainant reach into the bag in a suspicious manner at any point. After Person A was detained, he informed Respondent Gibson that the bag contained diapers and baby formula. Respondent Gibson felt the outside of the bag and determined that the contents did not feel like a firearm. Nevertheless, Respondent Gibson unzipped the bag and looked inside, only to find that Person A had accurately reported its contents.

Under the totality of these circumstances, Respondent Gibson's search of the backpack constituted an abuse of his authority. He did not have a reasonable suspicion that the bag contained a firearm, and I find him guilty of Specification 3.

Respondent Rios

Respondent Rios faces two charges for wrongful use of force against Person A.

Specification 1 alleges that he slammed Person A's body to the ground without police necessity, while Specification 2 charges that Respondent Rios stomped on Person A's chest and back. Section 221-02 (11) of the Patrol Guide states that a member or service should "apply no more than the reasonable force necessary to gain control" of a resisting subject.

It is alleged that Respondent Rios grabbed Person A by his waist and threw him to the ground, then stomped on his back and chest. Although Person A was inaccurate in describing the officer responsible, counsel for Respondent Rios does not deny that it was, in fact, his client who engaged Person A at the point in question. Rather, counsel suggests that the misidentification makes Person A an unreliable witness, and the court should instead credit Respondent Rios' claim that Person A merely lost his balance and fell to the ground, and that there was no stomping. Under the totality of the circumstances presented here, I credit Person A's account, and find that Respondent Rios used force that was excessive.

Person A testified in a manner that was detailed and consistent through both direct and cross examinations. Despite his young age, and the passage of time since the incident, Person A capably articulated the events of August 11, 2017. Indeed, more than once during his testimony he corrected the attorney when there was a misstatement of facts in the question. Person A convincingly described how he was grabbed by the waist from behind and slammed to the ground, and then kicked in his back and chest. The photograph of the back of Person A's shirt

(CCRB Ex. 1A) provides some corroboration of his account: as part of the dirt covering the shirt, there are two outlines which appear to be consistent with shoeprints, and I credit Person A's explanation that the marks on the shirt were caused by being stomped by the officer. Person A's brother Person B testified that he, too, observed Person A being thrown to the ground and kicked; however, given the distance between the two brothers at the time, Person B was not in a position to see the details of what occurred, and his account was less persuasive.

Respondent Rios, meanwhile, claimed he did not use any force in detaining Person A, but his denial was not convincing. The TRI Worksheet indicates that the officer used force on Person A: specifically, there was a "forcible takedown" by Respondent Rios. There would have been no need for a forcible takedown if [REDACTED] had merely lost his balance as Respondent Rios alleged at trial. It is more likely that Respondent Rios used the degree of force alleged, and then tried to minimize his conduct on the witness stand.

The record has established, by a preponderance of the credible evidence, that Respondent Rios forcibly slammed Person A to the ground, and then stomped on him. Under the totality of these circumstances, the force used by Respondent Rios was without police necessity, and I find him guilty of Specifications 1 and 2.

PENALTY

In order to determine an appropriate penalty, Respondents' service records were examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Lieutenant Lamont Gibson was appointed to the Department on July 9, 2007. Police Officer Nicholas Rios was appointed to the Department on July 9, 2013. Information from their personnel records that was

considered in making these penalty recommendations are contained in attached confidential memoranda.

Respondent Gibson has been found guilty of wrongfully stopping Person A and Person B, and searching the backpack without sufficient legal authority. The CCRB asks for a penalty of fifteen (15) vacation days. However, under the circumstances presented here, that recommendation is excessive.

On the one hand, this tribunal recognizes that there must be some accountability for the misconduct that occurred here. Respondent Gibson initiated the stops of Person A and Person B without a reasonable basis for doing so, then improperly searched the book bag. As noted by counsel for the CCRB, more is expected of Respondent Gibson, who was the supervising sergeant on the scene at the time.

However, there are mitigating factors here as well. Although he was found guilty of the charges against him, Respondent Gibson came across as forthright and professional on the witness stand as he recounted what he believed to be legitimate enforcement action. At the stationhouse after the incident, Respondent Gibson took the initiative of approaching Person C to explain what had transpired, and to apologize for what happened to her sons; Person C, herself, described Respondent Gibson as polite and respectful. Additionally, Respondent Gibson has received 11 medals for Excellent Police Duty, and 6 for Meritorious Police Duty.

In *Disciplinary Case Nos. 2017-17638 & 2017-17641* (Jul. 15, 2019), two 10-year detectives with no disciplinary records each forfeited four (4) vacation days for conducting wrongful stops of two individuals, where the stops were based on speculation, not reasonable suspicion. In *Disciplinary Case No. 2015-14036* (May 23, 2017), an 18-year sergeant with no disciplinary record forfeited five (5) vacation days for wrongfully stopping two individuals, then wrongfully entered a house to search for contraband.

If this were Respondent Gibson's first contact with the disciplinary system, a comparable penalty would have been recommended here. However, as indicated in the attached memorandum, in 2013 Respondent Gibson was placed on dismissal probation, and forfeited suspension and vacation days, in connection with three cases, one for being unprepared in Bronx Traffic Court, and two for off-duty incidents. Even with the mitigating factors noted above, in light of Respondent Gibson's prior disciplinary history, and the need for progressive discipline, a penalty higher than the comparable precedent is warranted. Taking into account the totality of the facts and circumstances presented here, I recommend that Respondent Gibson forfeit ten (10) vacation days.

Respondent Rios has been found guilty of using force against Person A, in that he threw him to the ground and stomped on him without police necessity. The CCRB asks that Respondent Rios, who has received 22 medals for Excellent Police Duty and 5 for Meritorious Police Duty, and has no disciplinary record, forfeit fifteen (15) vacation days. Under the circumstances presented here, a lower penalty is warranted.

At the time of the incident, Person A was 16 years old, walking down the street with his younger brother, doing an errand for their mother. When the plainclothes officers pulled up in an unmarked car, the boys were frightened and ran. After chasing Person A for about a block-and-a-half, Respondent Rios grabbed his waist and threw him to the ground, then stomped on Person A as he lay there.

Fortunately, Person A did not suffer major injuries as a result of this encounter. Nevertheless, Respondent Rios' use of force against this teen was excessive, and there must be appropriate accountability. Taking into account the totality of the facts and circumstances in this

matter, including Respondent Rios' history with the Department, I recommend that Respondent Rios forfeit ten (10) vacation days.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

APR 15 2020

DERMOT SHEA
POLICE COMMISSIONER





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER NICHOLAS RIOS
TAX REGISTRY NO. 955377
DISCIPLINARY CASE NO. 2018-19335

Respondent was appointed to the Department on July 9, 2013. On his last three performance evaluations, he received a 4.5 rating of "Extremely Competent/Highly Competent" in 2016, a 4.0 rating of "Highly Competent" in 2015, and a 3.5 rating of "Highly Competent/Competent" in 2014. He has been awarded 22 medals for Excellent Police Duty and five medals for Meritorious Police Duty.

Respondent has no disciplinary history.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
LIEUTENANT LAMONT GIBSON
TAX REGISTRY NO. 944594
DISCIPLINARY CASE NO. 2018-19331

Respondent was appointed to the Department on July 9, 2007. On his last three annual performance evaluations, he received 4.5 overall ratings of "Extremely Competent/Highly Competent" for 2014, 2016 and 2017. He has been awarded eleven medals for Excellent Police Duty and six medals for Meritorious Police Duty. [REDACTED]

In 2013, Respondent negotiated a penalty of 30 pre-trial suspension days, 15 vacation days and was placed on one-year dismissal probation to resolve three separate disciplinary matters from 2010 and 2011. He also agreed to undergo ordered breath testing and complete counseling. In the first case, Respondent attempted to leave a restaurant without paying his bill and being out of residence without permission while on sick report. In the second matter, he refused a Breathalyzer test after being pulled over while off-duty and failed to notify the Operations Unit of the incident. In the third case, he was unprepared to provide testimony at traffic court, failing to bring a copy of a summons or his memo book, which resulted in the dismissal of a case.

Respondent also has a monitoring history. On October 11, 2010, he was placed on Level 1 Force Monitoring, which was upgraded to Level 2 on August 12, 2011. That monitoring concluded on April 10, 2013.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials